

	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	C – Case Processing
	Section No./Name	C-800-FITAP-SNAP Changes
	Document No./Name	C-830-SNAP Adverse Action on Certified Cases
	Effective Date	June 1, 2021

I. STATEMENT OF POLICY

IN SOME ADVERSE ACTION SITUATIONS, THE CLIENT IS ENTITLED TO 13-DAY ADVANCE NOTICE. THIS PERIOD IS DETERMINED BY COUNTING 13 DAYS FROM THE DATE THE NOTICE IS MAILED, CONSIDERING THE DAY AFTER THE DATE THE NOTICE IS MAILED AS THE FIRST DAY. THE ACTION MUST NOT BE TAKEN DURING THE ADVANCE NOTICE PERIOD WHICH EXPIRES AT 4:30 P.M. ON THE 13TH DAY. IF THE 13TH DAY FALLS ON A WEEKEND OR HOLIDAY, TREAT THE FOLLOWING WORKDAY AS THE 13TH DAY. OTHER ADVERSE ACTIONS ARE EFFECTIVE IMMEDIATELY.

C-831-SNAP - PO ADVERSE ACTIONS THAT REQUIRE ADVANCE NOTICE

EXCEPT AS SPECIFIED IN C-832 BELOW, SEND 13-DAY ADVANCE NOTICE OF ADVERSE ACTION TO REDUCE BENEFITS OR CLOSE A CASE.

C-832-SNAP - PO ADVERSE ACTIONS THAT ARE EFFECTIVE IMMEDIATELY

IN THE FOLLOWING SITUATIONS, 13-DAY ADVANCE NOTICE IS NOT REQUIRED. A CONCURRENT NOTICE IS SENT TO THE CLIENT WHEN:

1. THE AGENCY DISQUALIFIES A HOUSEHOLD MEMBER BECAUSE OF AN INTENTIONAL PROGRAM VIOLATION AND THE BENEFITS OF THE REMAINING HOUSEHOLD MEMBERS ARE REDUCED OR ENDED BECAUSE OF THE DISQUALIFICATION. FORM FR 15A IS SENT BY THE FRAUD AND RECOVERY UNIT AND A CONCURRENT NOTICE OF REDUCTION IS SENT BY LITE.
2. THE WORKER REDUCES OR ENDS BENEFITS AT THE END OF A NORMAL PERIOD OF CERTIFICATION WHEN THE HOUSEHOLD TIMELY REAPPLIES.
3. A CLIENT HAS BEEN CERTIFIED IN ANOTHER STATE AND THAT FACT HAS BEEN ESTABLISHED.
4. THE CLIENT SIGNS A STATEMENT REQUESTING CLOSURE OR REDUCTION IN BENEFITS AND WAIVING THE RIGHT TO ADVANCE NOTICE.
5. BENEFITS ARE REDUCED OR TERMINATED EFFECTIVE THE MONTH FOLLOWING THE SIMPLIFIED REPORT MONTH AS A RESULT OF CHANGES REPORTED THROUGH THE SIMPLIFIED REPORTING PROCESS.

EXCEPTION: ADVANCE NOTICE IS REQUIRED PRIOR TO IMPOSING A SANCTION FOR FLEEING FELON RESTRICTIONS, PROBATION/PAROLE VIOLATIONS, Adults convicted of certain felonies as stated in E-221-1-SNAP-PO, AND FAILURE TO COMPLY WITH ELIGIBILITY REQUIREMENTS, SUCH AS VOLUNTARY QUIT and refusal to comply with QC.

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	C – Case Processing
	Section No./Name	C-800-FITAP-SNAP Changes
	Document No./Name	C-830-SNAP Adverse Action on Certified Cases
	Effective Date	June 1, 2021

6. THE AGENCY RECEIVES A WRITTEN REPORT SIGNED BY THE HEAD OF THE HOUSEHOLD OR OTHER RESPONSIBLE HOUSEHOLD MEMBER WHICH PROVIDES SUFFICIENT INFORMATION FOR THE AGENCY TO DETERMINE THE HOUSEHOLD'S BENEFIT AMOUNT OR INELIGIBILITY. E-MAIL CORRESPONDENCE IS CONSIDERED A SIGNED, WRITTEN REPORT IF IT IS SENT BY THE HEAD OF THE HOUSEHOLD OR OTHER RESPONSIBLE HOUSEHOLD MEMBER FROM THE E-MAIL ADDRESS THAT THE HOUSEHOLD HAS PREVIOUSLY REPORTED AS THEIR E-MAIL ADDRESS.
7. MASS CHANGES.
8. The worker determines, based on reliable information, that the household has moved or will be moving out of the state prior to the next monthly issuance. Send the notice of closure to the last known address.
9. The client applied for PA and SNAP at the same time and has been getting SNAP while waiting for approval of the PA grant. In these cases, the client was notified at the time of certification that his SNAP allotment would be reduced if the grant was approved.
10. The client was a certified resident in a drug or alcohol treatment center or a group living arrangement which loses its state certification or FNS disqualifies it as a retailer.
11. The expedited household provides postponed verification which reduces or terminates benefits.

Do not send notice to the household concurrent with taking the action when:

1. All members of a household have died. The EBT card must be cancelled. A replacement EBT card must not be issued.
2. The client's allotment changes from month to month during the certification period because of changes expected at time of certification. In these cases, the client was informed at the time of certification what his allotment would be each month of the certification period.
3. The agency recoups benefits from a client who previously received a repayment demand letter.
4. The Fraud and Recovery Section converts a cash payment to allotment reduction because the household failed to make agreed payments on a claim.

C-833-SNAP - PO CONTINUATION OF BENEFITS AFTER AN APPEAL REQUEST

C-833-1-SNAP - PO Advance Notice of Adverse Action

DO NOT TAKE THE ACTION TO REDUCE OR TERMINATE BENEFITS IF THE CLIENT

	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	C – Case Processing
	Section No./Name	C-800-FITAP-SNAP Changes
	Document No./Name	C-830-SNAP Adverse Action on Certified Cases
	Effective Date	June 1, 2021

REQUESTS A FAIR HEARING DURING THE 13-DAY ADVANCE NOTICE PERIOD UNLESS THE HOUSEHOLD WAIVES ITS RIGHT TO CONTINUED BENEFITS. IF THE REQUEST FOR A FAIR HEARING IS SUBMITTED BY MAIL, IT MUST BE POSTMARKED BY THE 13TH DAY GIVEN ON THE NOTICE OF ADVERSE ACTION.

IF THE HOUSEHOLD DOES NOT WAIVE ITS RIGHT TO CONTINUED BENEFITS, BENEFITS SHALL CONTINUE AT THE SAME LEVEL UNTIL THE END OF THE CERTIFICATION PERIOD OR UNTIL THE RESOLUTION OF THE HEARING, WHICHEVER IS FIRST.

C-833-2-SNAP - PO Concurrent Notice of Adverse Action

IF THE CLIENT REQUESTS A FAIR HEARING WITHIN 13 DAYS OF THE MAILING DATE OF A NOTICE WHICH WAS SENT CONCURRENT WITH THE ACTION, REINSTATE BENEFITS TO THE PREVIOUS LEVEL WITHIN 5 DAYS FROM THE DATE OF RECEIPT OF THE HOUSEHOLD'S REQUEST FOR A FAIR HEARING UNLESS THE CLIENT WAIVES HIS RIGHT TO CONTINUED BENEFITS. IF THE REQUEST FOR A FAIR HEARING IS SUBMITTED BY MAIL, IT MUST BE POSTMARKED BY THE 13TH DAY AFTER THE CONCURRENT NOTICE WAS SENT. IF THE 13TH DAY FALLS ON A WEEKEND OR HOLIDAY, TREAT THE FOLLOWING WORKDAY AS THE 13TH DAY.

IF THE HOUSEHOLD DOES NOT WAIVE ITS RIGHT TO CONTINUED BENEFITS, BENEFITS WILL BE REINSTATED AT THE PRIOR LEVEL AND CONTINUE UNTIL THE END OF THE CERTIFICATION PERIOD OR UNTIL THE RESOLUTION OF THE HEARING, WHICHEVER IS FIRST.

THIS APPLIES IF ACTION WAS TAKEN TO REDUCE OR END BENEFITS BASED SOLELY ON WRITTEN INFORMATION FROM THE HOUSEHOLD.

NOTE: REINSTATEMENT OF BENEFITS IS NOT APPLICABLE FOR CHANGES OR CLOSURES MADE AT THE END OF A NORMAL PERIOD OF CERTIFICATION.

II. PROCEDURES

C-831-SNAP - PR ADVERSE ACTIONS THAT REQUIRE ADVANCE NOTICE

A MANUAL OR AUTOMATED NOTICE OF DECISION MAY BE SENT.

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	C – Case Processing
	Section No./Name	C-800-FITAP-SNAP Changes
	Document No./Name	C-830-SNAP Adverse Action on Certified Cases
	Effective Date	June 1, 2021

IV. REFERENCES

[7CFR 273.13](#)

[LAC](#) 67: Subpart 3. Supplemental Nutrition Assistance Program (SNAP), Chapter 19. Certification of Eligible Households, Subchapter M.